ARB/C031/2020 – VARIATION OF A FREEZING ORDER

IT IS BEING NOTIFIED that by a decree dated 28th December, 2022 given by the Criminal Court – (Hon. Mister Justice Dr Aaron Bugeja LL.D.). In the case:

The Police
(Inspector Joseph Mercieca)

Versus

JOSEPHINE FARRUGIA MIFSUD, lawyer, 44 years, daughter of the late Andrew Farrugia and Mary Farrugia née Borg, born in Pietà, Malta on the 29th October, 1978, residing at 5, Pietra, Triq l-Inbid, Attard and holder of Maltese Identity Card bearing number 518278M.

The Court AUTHORISES the accused JOSEPHINE FARRUGIA MIFSUD to carry out payments in relation to the 'performance guarantee' from bank account ending –10003 listed in the name of the accused and held with BNF Bank plc. The amount due in relation to this payment shall be deducted from the amount that the accused is authorised to receive as per Article 5 (1) (b) of the Prevention of Money Laundering Act, Chapter 373 of the Laws of Malta.

This variation is being published in terms of Article 5 (3) of the Prevention of Money Laundering Act, Chapter 373 of the Laws of Malta, following a freezing order which decree was given by the Court of Magistrates (Malta) as a Court of Criminal Inquiry (Magistrate Dr Astrid May Grima LL.D.) on the 10th September, 2020, which was published in the Government Gazette on the 15th September, 2020 where the court ordered the attachment in the hands of third parties in general of all moneys and other movable or immovable property due or pertaining or belonging to **JOSEPHINE FARRUGIA MIFSUD**.

Today, 16th January, 2023

Director, Asset Recovery Bureau

ARB/C031/2020 – VARJAZZJONI TAL-ORDNI TAL-IFFRIŻAR

IKUN JAF KULĦADD illi b'digriet mogħti fit-28 ta' Diċembru, 2022 mill-Qorti Kriminali – (Onor. Imħallef Dr Aaron Bugeja LL.D.). Fil-kawża fl-ismijiet:

Il-Pulizija
(Spettur Joseph Mercieca)

Kontra

JOSEPHINE FARRUGIA MIFSUD, avukat, ta' 44 sena, bint il-mejjet Andrew Farrugia u Mary Farrugia xebba Borg, imwielda Pietà, Malta fid-29 ta' Ottubru, 1978, residenti ġewwa 5, Pietra, Triq l-Inbid, Attard u detentriċi ta' Karta tal-Identità Maltija bin-numru 518278M.

Il-Qorti AWTORIZZAT lill-imputata JOSEPHINE FARRUGIA MIFSUD sabiex teżegwixxi pagamenti relatati mal-*performance guarantee* mill-kont tal-bank li jispiċċa –10003 intestat f'isem l-imputata u miżmum mal-BNF Bank plc. L-ammont dovut in kwistjoni għandu jiġi mnaqqas minn dak l-ammont illi l-imputata hija awtorizzata li tirċievi ai termini tal-Artikolu 5 (1) (b) tal-Att kontra *Money Laundering*, Kapitolu 373 tal-Liġijiet ta' Malta.

Din il-varjazzjoni qed issir ai termini tal-Artikolu 5 (3) tal-Att kontra *Money Laundering*, Kapitolu 373 tal-Liġijiet ta' Malta, wara digriet ta' ordni tal-iffriżar mogħti mill-Qorti tal-Maġistrati (Malta) bħala Qorti Struttorja (Maġistrat Dr Astrid May Grima LL.D.) fl-10 ta' Settembru, 2020, li ġiet ippubblikata fil-Gazzetta tal-Gvern fil-15 ta' Settembru, 2020 fejn il-Qorti ordnat is-sekwestru f'idejn terzi persuni b'mod ġenerali, tal-flejjes u l-propjetà mobbli jew immobbli kollha li huma dovuti lil, jew imissu lil, jew li huma propjetà ta' **JOSEPHINE FARRUGIA MIFSUD**.

Illum, 16 ta' Jannar, 2023

Direttur, Uffiċċju għall-Irkupru tal-Assi